

24STCV16461 24STCV16461

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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

24STCV16461

MAURICIO

MORALES LOPEZ vs JULIAN PEREZ ULTRERAS, et al.

September

28, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF'S MOTION TO WITHDRAW MATTERS DEEMED ADMITTED BY THE COURT'S MARCH 26, 2026 ORDER [CODE CIV. PROC., §2033.300].

RULING:

The Motion is granted.

Plaintiff to give notice.

I.

BACKGROUND

On July 2, 2024, MAURICIO MORALES LOPEZ (Plaintiff) filed a form Complaint against JULIAN PEREZ ULTRERAS; and MONDELEZ INTERNATIONAL, INC. (Defendants), alleging the following causes of action:

1.

MOTOR VEHICLE; and

2.

GENERAL NEGLIGENCE.

Plaintiff alleges that Defendants negligently collided with Plaintiff's vehicle, causing damage to the Plaintiff's person and property.

Now Plaintiff brings the Motion, filed on August 17, 2026, to Vacate deemed admissions.

Defendants have filed an Opposition raising several grounds, addressed below.

II.

LEGAL STANDARD

Where a party never responded to requests for admissions, and never successfully filed a motion for relief based on mistake, inadvertence or excusable neglect (Code Civ. Proc., § 2033.280, subd. (a)(2)), an order deeming admitted the requests is conclusive, and may not be contested with evidence in dispute. (People v. \$2,709 United States Currency (2014) 231 Cal.App.4th 1278, 1285–1286.)

III.

ANALYSIS

Plaintiff requests the

Court to grant the Motion for Relief from Deemed Requests for Admissions, based upon responses served before that discovery hearing, and staff reassignments, miscalendaring of the prior discovery hearing, computer file issues, and client noncommunicating, which caused the prior Motion to go unopposed.

Defendants advocate denying, for reasons including these:

1.

The excuses do not explain missing details, including over one year after the requests were propounded and five months after the Motion was filed.

2.

One of the handling attorneys-- Norberto Sandoval— and Plaintiff, did not file declarations.

3.

Plaintiff's unverified responses were the equivalent to no response at all and not in substantial compliance. (Code Civ. Proc. 2033.280(c).)

4.

Code of Civil Procedure section 473 does not apply to relief from deemed admissions.

Additionally, Defendants have a Motion for Summary Judgment pending for hearing on October 15, 2026, based solely on the deemed admissions and no evidence on the merits. "A trial court must judge whether use of a request for admissions is in conformity with the spirit of the law and serves substantial justice.... When a court is 'troubled' by the way a party has used requests for admission, the court may take corrective action." (LCPFV, LLC v. Somatdary Inc. (2024) 106 Cal.App.5th 743, 755.)

"[A] motion to have admission requests deemed admitted may not be granted where the record establishes ... that (1) proposed responses to the requests have been served prior to the hearing on the motion and (2) such responses are in substantial compliance with the provisions of section 2033, subdivision (f)(1)." (Tobin v. Oris (1992) 3 Cal.App.4th 814,

828, overruled on other grounds by *Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973, 983, fn.12.) Courts evaluate tardy responses to requests for admissions, in toto, to determine whether they substantially comply with the code, and do not evaluate each individual response. (St.

Mary v. Superior Court (2013) 223 Cal.App.4th 762, 779-780.) “[T]he assertion of waived objections does not necessarily prevent ‘substantial compliance with Section 2033.220’ as required by section 2033.280(c).

Compliance analysis should prioritize the nature of the substantive answers in the proposed response. While waived objections should be a factor in the assessment, their presence should primarily be addressed through the amount of mandatory monetary sanctions imposed.” (*Katayama v. Continental Investment Group* (2024) 105 Cal.App.5th 898, 909-910 (*Katayama*).)

Courts, on motion, may relieve parties from waivers of discovery objections caused by late responses, if parties subsequently have served responses in substantial compliance with applicable statutory provisions, and their failures resulted from mistake, inadvertence, or excusable neglect. (*Pelton v. Delta Packaging Prods.* (2008) 165 Cal.App.4th 1568, 1577, fn.13 [citing Code Civ. Proc., § 2031.300]; *Sinaiko Healthcare Consulting, Inc. v. Pac. Healthcare Consultants* (2007) 148 Cal.App.4th 390, 407.)

“Because the law strongly favors trial and disposition on the merits, any doubts in applying section 2033.300 must be resolved in favor of the party seeking relief. Accordingly, the court’s discretion to deny a motion under the statute is limited to circumstances where it is clear that the mistake, inadvertence, or neglect was inexcusable, or where it is clear that the withdrawal or amendment would substantially prejudice the party who obtained the admission in maintaining that party’s action or defense on the merits.” (*New Albertsons, Inc. v. Superior Court* (2008) 168 Cal.App.4th 1403, 1408, 1420-1421 [notwithstanding delay, “the policy in favor of trial on the merits compels the conclusion that the motion to withdraw the admission should have been granted.”].)

“Since section 2033 specifically sets out the conditions under which default relief from erroneous admissions can be given, that statute must control rather than the general default statute, section 473.” (St. Paul Fire & Marine Ins. Co. v. Sup. Ct. (1992) 2 Cal.App.4th 843, 852, disapproved on other grounds by *Wilcox v. Birtwhistle*

(1999) 21 Cal.4th 973, 977.) Also, some courts have applied the standards of Section 473 in determining issues of mistake, in advertence and excusable neglect for purposes of section 2033. (E.g., City of Fresno v. Superior Court (1988) 205 Cal.App.3d 1459, 1467 [“The Legislature apparently intended to employ the same standard for relief from defaults as used in section 473 for failure to serve a timely response to a discovery demand.”]; Gribin Von Dyl & Associates, Inc. v. Kovalsky (1986) 185 Cal.App.3d 653, 658 [Where ... matters are deemed to have been admitted pursuant to notice served on a party following his failure timely to respond to a request for admissions, the only avenue of relief is that which is specified in section 2033,3 viz., a motion under section 473....”].)

Perhaps

somewhat analogously, discretionary relief applies to other proceedings, such as failures to meet procedural deadlines and late oppositions. (E.g., Huh v. Wang (2007) 158 Cal.App.4th 1406, 1419.) Excusable neglect, including for purposes of Code of Civil Procedure section 473, includes the circumstances where an attorney relies upon employees who err in performing tasks such as miscalendaring. (Renteria v. Juvenile Justice, Dept. of Corrections and Rehabilitation (2006) 135 Cal.App.4th 903, 911-912 [attorney’s reliance on secretary’s erroneous removal of the claim filing date from the calendar was excusable].) Attorneys’ or staff’s calendaring errors can support relief, if excusable under appropriate circumstances. (Comunidad en Accion v. Los Angeles City Council (2013) 219 Cal.App.4th 1116, 1133-1135 [“trial court abused its discretion in denying ... relief from default. The one-week delay in requesting a hearing was an isolated mistake in an otherwise vigorous and thorough presentation of ... claims.... [T]he lead attorney made a single calendaring error, not a series of errors resulting from disorganization.”].) “Discretionary relief need not be granted for ‘errors by [counsel] ... in failing to calendar and appear’ at a hearing.” (Huh v. Wang (2007) 158 Cal.App.4th 1406, 1424.)

And as Defendant

acknowledges, denial of relief is discretionary. (Opposition, 7:23.)

Here, the Motion to Deem

Admitted arguably qualified for granting on March 26, 2026 when, unbeknownst to the Court, unverified responses had been served before the hearing on February 26, 2026. The prior Motion did not include information about the subsequent service of discovery responses. (E.g., Motion re Admissions, filed 10/27/25, 5:20-21 (“As of the date of filing this Motion, Plaintiff has not served any

verified responses, (or any responses whatsoever), to Mondelez's Requests for Admission (Set One),...").)

But, arguably, substantial compliance existed without a verification, since the determination is flexible and should prioritize the substantive nature of the responses. (Katayama, supra, 105 Cal.App.5th at p. 909 [also declining to reach issue whether substantial compliance existed given the verification wording].) Distinguishably, an unverified discovery response would be treated as no response, for purposes of discovery-objection waivers. (Steele v. Totah (1986) 180 Cal.App.3d 545, 549; Appleton v. Superior Court (1988) 206 Cal.App.3d 632, 636-637.) Eventually, verifications were served on March 30, 2026, making them unquestionably in substantial compliance.

Ultimately, pursuant section 2033.33, the Court finds that staff reassignments, miscalendaring, a noncommunicative client, and technological issues, collectively constitute excusable neglect that support both considering the untimely Opposition and granting the relief from the Order deeming requests admitted. (See Shaun J. Bauman Declaration, filed 8/17/26, ¶¶ 5-13.)

Finally, Defendant's positions concede that, "[t]here is no basis for this court to reach the issue of prejudice." (Opposition, 10:14.)

IV.

CONCLUSION

Therefore, the Court grants the Motion.